

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 10, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	20CV370735	Robert Moles et al vs Carney Construction Consulting, Inc. et al	Motion to Disqualify Counsel Scroll down to Line 1 for Tentative Ruling.
LINE 2	25CV477971	Chadney Duncan- Pauley vs Ford Motor Company et al	Petition to Compel Arbitration Scroll down to Line 2 for Tentative Ruling.
LINE 3	26CV491239	Cassondra Lascola et al vs Mohammed Al- Temimi M.D. et al	Motion to Deem First Amended Complaint Filed Nunc Pro Tunc Scroll down to Line 3 for Tentative Ruling.
LINE 4	26CV497702	Baoxin Ling vs Miro Holdings, LLC dba Topi Cake	Petition For Writ of Mandate VACATED. This case has been designated as a provisional complex matter and is reassigned to Department 66 in front of the Honorable Helen E. Williams for all purposes. The Case Management Conference is set for October 13, 2026 at 1:30 p.m. in Department 66.

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9:00 A.M.

Calendar Line # 1

Case Name Robert Moles et al vs Carney Construction Consulting, Inc. et al

Case No. 20CV370735

Motion to Disqualify Counsel

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This breach of contract claim stems from a Complaint that Plaintiffs Robert Moles and Christopher Douglas Moles, as Trustee of the Mary Denise Moles Revocable Trust, Successor in interest (collectively “Plaintiffs”) filed on September 14, 2020 against Ian Carney (“Carney”), Carney Construction Consulting, Inc. (“Carney Construction”), SJR Ventures, Inc. (“SJR”), Steven Johnson (“Johnson”), and DOES 1 through 20 (collectively “Defendants”).

B. RELEVANT PROCEDURAL BACKGROUND

On October 11, 2022, Defendants SJR and Johnson filed a petition to compel arbitration and stay the action. Parties filed a stipulation to proceed to binding arbitration and stay the action on October 26, 2022.

On June 20, 2024, basic default was entered against Defendant Carney. On April 14, 2026, Plaintiff filed a request for court judgment against Defendants Carney and Carney Construction in the amount of \$5,416,584.78 and the matter was set for a prove up hearing on June 8, 2026 at 1:30 p.m. in front of the Honorable Shella Deen. The prove up hearing was reset to July 20, 2026 at 1:30 p.m. in Department 18.

C. PRESENT MOTION

On May 18, 2026, Defendant Carney filed a motion to disqualify Plaintiff’s Counsel: Ronald R. Rossi, Esq. and the law firm of Rossi, Hamerslough, Reischl & Chuck Counsel and James L. Dawson, Esq. and the law firm of Gates Eisenhart Dawson, counsel for Defendants SJR Ventures, Inc. and Steven Johnson. (Notice of Motion, p. 1-2). The motion was initially set for June 8, 2026 at 1:30 p.m. in Department 18. No minute order reflects this case was continued to this date in Department 1. There is no proof of service attached for this hearing date as required under Code of Civil Procedure 1005(b).

Plaintiff’s counsel filed opposition papers on May 27, 2026 and a limited opposition on September 3, 2026.

Defendant filed Reply briefs on August 20, 2026 and supplemental reply brief September 4, 2026.

The Court has carefully reviewed the Defendant Carney’s notice of motion, memorandum of points and authorities (“MPA”), Declaration of Ian D. Carney in support of the defendant’s moving papers with Exhibits A – I attached (totaling 63 pages); Plaintiff’s May 27, 2026 Opposition (totaling 6 pages); May 27, 2026, Declaration of Missy M. Cornejo in support of the opposition and attached Exhibits A – F (totaling 24 pages); August 20, 2026 Reply brief, Declaration of Carney and attached Exhibits A-B (totaling 27 pages); September 3, 2026 Plaintiff’s Limited Opposition (totaling 9 pages); September 3, 2026 Declaration of Missy M. Cornejo and attached Exhibits A-B (totaling 38 pages); September 4 Reply (totaling 2 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

A. DEFAULT STATUS

“The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered.” (*Devlin v. Kearny Mesa AMC/Jeep/Renault*,

Inc. (1984) 155 Cal.App.3d 381, 385). Further, the entry of default “[c]uts off the defendant's right to file pleadings and motions (other than a motion to set aside default under § 473), and it also cuts off the defendant's right to notices and the service of pleadings or papers.” (*Bailey v. Citibank, N.A.* (2021) 66 Cal.App.5th 335, 347; *Steven M. Garber & Assocs. v. Eskandarian* (2007) 150 Cal.App.4th 813, 819). Aside from a motion to set aside a default judgment, any other motion filed by a defendant in default is unauthorized and void. (*Humphrey v. Bewley* (2021) 69 Cal.App.5th 571, 580).

B. PROCEDURAL VIOLATION

Code of Civil Procedure section 1005 requires that “[a]ll moving and supporting papers shall be filed and served at least 16 court days before the hearing. The moving and supporting papers served shall be a copy of the papers filed or to be filed with the court.” (Code Civ. Proc., § 1005, subd. (b); *see also* Code Civ. Proc., § 1010). A proof of service must be attached to motions and filings. (Cal. Rules of Court, rules 2.306 and 3.510l; *see also* Code Civ. Proc., §§ 1010 and 1013).

III. ANALYSIS

Here, Defendant Carney seeks to disqualify Plaintiff’s Counsel: Ronald R. Rossi, Esq. and the law firm of Rossi, Hamerslough, Reischl & Chuck Counsel and James L. Dawson, Esq. and the law firm of Gates Eisenhart Dawson, counsel for Defendants SJR Ventures, Inc. and Steven Johnson. (Notice of Motion, p. 1-2). Plaintiff seeks to disqualify counsel under California Rules of Professional Conduct, rule 1.9. (MPA, p. 2-3).

Without waiving any substantive objections on the merits of the motion, Plaintiff opposes the motion on the following procedural deficiencies: (1) a default was entered against the defendant on June 20, 2024, which remains in effect; (2) failure to provide proper notice of this hearing; and (3) failure to comply timely filing and notification of the motion pursuant to Code of Civil Procedure section 1005(b). (Limited Opposition, p. 2-6; Opposition, p. 3). Plaintiff counsel asserts that the notice of motion for June 8, 2026 was not properly calendared it eh correct department and the motion was not called on that day and the minute order is silent as to the motion. (Declaration of Cornejo in support of the limited opposition, ¶¶ 6-8; Exhibit B). Plaintiff asserts that while defendant reserved a hearing date for this motion., service was not properly effectuated. (*Id.*, at ¶¶ 9-13).

In reply, Defendant Carney asserts that even if notice was not proper for the June 8, 2026 hearing, the defendant re-filed the motion for a later hearing date. (Reply, p. 2). Defendant Carney requests that the Court consider the substantive merits of the motion despite any procedural defects. (*Id.*, p. 2-7). Defendant argues that Plaintiff filed opposition papers, which demonstrate knowledge of this present motion and hearing. (Supplemental Reply, p. 1-2).

First and foremost, the Court finds that an entry of default was filed on June 20, 2024 against Defendant Carney. The default status remains in place. Accordingly, Defendant Carney is precluded from filing pleadings or this present motion. (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.*, *supra*, 155 Cal.App.3d at 385; *Bailey v. Citibank, N.A.*, *supra*, 66 Cal.App.5th at 347; *Steven M. Garber & Assocs. v. Eskandarian*, *supra*, 150 Cal.App.4th at 819). Given Defendant Carney’s default status, the Court deems this present motion to disqualify counsel as unauthorized and void. (*Id.*; *see also*, *Humphrey v. Bewley*, *supra*, 69 Cal.App.5th 571, 580). The Court need not further analyze additional procedural deficiencies under Code of Civil Procedure section 1005 and cannot consider the merits of the motion.

IV. CONCLUSION

Based on the foregoing, the motion to disqualify is DENIED. The Court will prepare the formal Order.

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Calendar Line # 2
Case Name Chadney Duncan-Pauley vs Ford Motor Company et al
Case No. 25CV477971
Petition to Compel Arbitration
<u>I. BACKGROUND</u> This case stems from a breach of warranty claim under the Song Beverly Act, regarding Plaintiff Chadney Duncan-Pauley (“Plaintiff”)’s November 2023 purchase of a 2023 Ford Escape, vehicle identification number, 1FMCU0GN2PUA84386 (“Subject Vehicle”) from Sunrise Ford of North Hollywood (Dealership). (Complaint at ¶ 7). Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (<i>Id.</i> at ¶ 47). Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (<i>Id.</i> at ¶ 49). On October 17, 20205 Plaintiff filed a Complaint against Defendants Dealership and Ford Motor Company. The sole cause of action alleged against Dealership is for negligent repair. At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (“RISC”) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action. <u>II. LEGAL STANDARD</u> Dealership maintains that the Federal Arbitration Act (FAA) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Motion to Compel Arbitration at pp. 6:24-7:1). The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A at p. 5). Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (<i>Chiron Corp. v. Ortho Diagnostic Systems, Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130). To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (<i>Davis v. Nordstrom, Inc.</i> (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; <i>Ingle v. Circuit City Stores, Inc.</i> (9th Cir. 2003) 328 F.3d 1165, 1170). Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.” In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (<i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 (<i>Iyere</i>); <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1060). The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (<i>Iyere, supra</i>, 87 Cal.App.5th at p. 755). // //

III. ANALYSIS

A. A VALID AGREEMENT TO ARBITRATE EXISTS

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A at p. 5). Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “**Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on page 5 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Id.*, Ex. A at p. 1). The RISC further drew the arbitration provision to Plaintiffs’ attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 5, BEFORE SIGNING BELOW.” (*Id.*, Ex. A at p. 6). Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ ‘A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.’ ” ’]]).

Plaintiff argues Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted). Here, Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:17-4:11). In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166). Dealership has shown a valid agreement to arbitrate.

B. THE SCOPE OF THE ARBITRATION AGREEMENT COVERS PLAINTIFF’S CLAIMS

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise. . . , between you and us. . . , which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Clayton Decl., Ex. A at p. 5). Plaintiff’s sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue “warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership].” (Opposition at p. 2:8-10). That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer’s attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126). By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff’s claims.

The court does not reach Dealership’s arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not addressing Dealership’s arguments on those points.

C. THIS ACTION IS STAYED IN ITS ENTIRETY

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has filed suits against two entities, Defendants Ford Motor Company and Dealership, for different causes of action. Dealership argues “[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective.” (Reply at p. 8:22-24). Plaintiff has not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

IV. CONCLUSION

Based on the foregoing, the petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. The Court will prepare the formal Order.

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Calendar Line # 3
Case Name Cassondra Lascola et al vs Mohammed Al-Temimi M.D. et al
Case No. 26CV491239
Motion to Deem First Amended Complaint Filed Nunc Pro Tunc I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND This case stems from a medical malpractice- wrongful death claim. In April 5, 2025, Nancy LaScola underwent robotic cholecystotomy under the care of Defendants, including Mohammed Al-Temimi, M.D. (“Al-Temimi”). (Complaint, ¶ 7). Decedent La Scola passed away on April 19, 2026. (Declaration of Jeffrey A. Clause (“Clause Decl.” ¶ 2). Plaintiffs filed a Complaint alleging a single cause of action, medical malpractice-wrongful death against Defendant Al-Temimi and DOES one through fifty on April 7, 2025. B. RELEVANT PROCEDURAL HISTORY On April 15, 2026, Plaintiffs Cassondra and Trevor Lascola (collectively “Plaintiffs”) filed its First Amended Complaint (“FAC”). The clerk’s office issued a civil filing rejection letter on May 13, 2026 citing that the caption of the FAC did not match the summons and additional parties added to the summons. On May 18, 2026, Plaintiff filed its corrected FAC, alleging the same single cause of action, medical negligence – wrongful death against Defendant Al-Temimi, but amended DOES to include Defendant Reza Malek (“Reza”), M.D., Good Samaritan Hospital, L.P. dba Good Samaritan Hospital (“GSH”), and DOES one through twenty five (collectively “Defendants”). Defendants have filed Answers to Plaintiffs FAC: Defendant GSH filed an Answer on June 25, 2026; Defendant Al-Temimi filed an Answer on July 6, 2026; and Defendant Malek filed an Answer on July 9, 2026. C. PRESENT MOTION Five days after the clerk’s civil filing rejection notice, Plaintiffs filed this motion to deem FAC filed nunc pro tunc on May 18, 2026. The proof of service of the motion was subsequently served via electronic mail service on all defense counsel on July 9, 2026. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 27, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following, Plaintiff’s notice of motion (totaling 2 pages); memorandum of points and authorities (“MPA”) (totaling 3 pages); Declaration of Jeffrey A. Clause and attached Exhibits 1-5 (totaling 24 pages); proof of service; and the pleadings. II. <u>LEGAL STANDARD</u> A. NUNC PRO TUNC ORDER AMENDING FILINGS “[A] paper is deemed filed when it is deposited with the clerk with directions to file the paper.” (<i>Id.</i> at p. 778.) “The functions of the clerk are purely ministerial. [Citation.] The clerk has no discretion to reject a complaint that substantially conforms to the local rules.” (<i>Rojas v. Cutsforth</i> (1998) 67 Cal.App.4th 774, 776-777; according to <i>Mito v. Temple Recycling Center Corp.</i> (2010) 187 Cal.App.4th 276, 279-281). The Court may issue a nunc pro tunc order amending the filing date of the complaint.

B. CODE OF CIVIL PROCEDURE SECTION 340.5

Pursuant to Code of Civil Procedure section 335.1, a personal injury action generally must be filed within two years of the date of the injury. However, Code of Civil Procedure section 340.5 provides that “in an action for injury or death against a health care provider based upon such person’s alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first.” (Code Civ. Proc., § 340.5). “‘Professional negligence’ means a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death, provided that such services are within the scope of services for which the provider is licensed and which are not within any restriction imposed by the licensing agency or licensed hospital.” (*Id.*, at subd. (2)).

III. ANALYSIS

Here, Plaintiffs seek an Order to have their FAC filed on May 18, 2025 deemed to have been filed nunc pro tunc as of April 15, 2026. Plaintiff filed its original Complaint on April 7, 2026 alleging a single cause of action, medical malpractice – wrongful death against Defendant Al-Temimi. (Clause Decl., ¶ 3; Exhibit 1). On April 15, 2026, Plaintiff filed its FAC alleging the same single cause of action against Defendant Al-Temimi, but amended DOES to include Defendants Malek GSH, and DOES one through twenty five. (*Id.*, ¶ 4; Exhibit 2). On May 13, 2026, the clerk’s office rejected the timely filing of the April 15, 2026 FAC on non-substantive grounds, citing that the caption does not match the summons and additional parties added. (*Id.*, ¶ 5; Exhibit 3). Plaintiff asserts that it promptly identified the errors and resubmitted the FAC. (*Id.*, ¶ 6; Exhibits 4-5). Plaintiff argues that the FAC was timely filed on April 15, 2026 and was rejected on non-substantive defects that should be deemed improperly rejected as an insubstantial reason. (MPA, p. 2-3). Plaintiff argues that under *Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 778, the FAC should be deemed filed as of April 15, 2026. (*Id.*). Plaintiff argues that denying nunc pro tunc relief would result in potential arguments regarding a statute of limitations bar as medical malpractice are guided by a one-year statute of limitations, which here is April 19, 2026 based on the death of Decedent La Scola. (*Id.*).

The Court finds that the non-substantive error in the caption not matching the summons with the DOE amendments in the FAC did not require rejection of the filing. Otherwise, the FAC substantially conformed to local rules. (*Rojas v. Cutsforth, supra*, 67 Cal.App.4th at 776-778; *Mito v. Temple Recycling Center Corp., supra*, 187 Cal.App.4th at 279-281). Plaintiff has demonstrated it acted with alacrity upon receiving notice of the clerk’s filing rejection in making the appropriate amendments and refiled the FAC. Simultaneously, Plaintiff filed this motion to address the issue. The Court notes that Defendants have filed Answers to Plaintiffs’ FAC and were timely served notice of the present motion. The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). The Court notes that the law’s policy favors disposition of litigation on the merits.

The Court also notes that the FAC amended DOE defendants and under Code of Civil Procedure section 474 relate back to the original complaint to address any statute of limitation issues. (Code Civ. Proc., § 474; *Hahn v. New York Air Brake LLC* (2022) 77 Cal.App.5th 895, 897-889 (“If the statute’s requirements are satisfied, the amendment relates back and the substituted defendant is considered to have been a party from the action’s start.”)).

IV. CONCLUSION

Based on the foregoing, the unopposed motion, the Court GRANTS the motion. It is hereby ORDERED that Plaintiff’s FAC is deemed to be filed on April 15, 2026, nunc pro tunc. The Court will prepare the formal order.